

24NWLC44335 24NWLC44335

County: los-angeles

Division: Civil Law and Motion

Department: Z

Hearing date: 2026-07-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CZ%2C07%2F21%2F2026

Source SHA-256: 18ed19cc2642b2f4684fd1c74f17dc6e9484869313793b2ddd2aa13c820d229f

Case Number: 24NWLC44335 Hearing Date: July 21, 2026 Dept: Z

The Court has read and considered the moving papers filed by Plaintiff, Kinecta Federal Credit Union ("Plaintiff"), including counsel's declaration and the exhibits. No opposition has been filed by Defendant, James Steven Litsis ("Defendant").

The Court finds that Plaintiff served Defendant with Form Interrogatories (Set One) by mail on February 13, 2026, and has provided proof of service establishing proper service. Defendant has not served any responses to the discovery requests. On April 15, 2026, Plaintiff served its Motion to Compel Responses to Discovery by mail at the same address used for the discovery requests. The proof of service for the discovery request and the motion reflect the same address identified by Defendant in his Answer.

Having considered the moving papers and Defendant's failure to file an opposition or serve any requested documents, Plaintiff's Motion to Compel Responses to Form Interrogatories (Set One) is GRANTED. Defendant shall serve verified responses, without objection, to Plaintiff's Form Interrogatories (Set One).

The Court has also considered Plaintiff's request for monetary sanctions in the amount of \$850.50 for the motion.

The Court finds the requested amount to be unreasonable and disproportionate in the context of this collection action. The Court further finds that, pursuant to Code of Civil Procedure section 2030.290(c), "other circumstances make the imposition of the sanction unjust."

Those circumstances include, but are not limited to, the fact that the information and documents sought by Plaintiff appear to consist largely of information already known to Plaintiff, documents already in Plaintiff's possession, and/or information or documents that are unlikely to bear on the resolution of the issues presented in this action. The Court also notes that on Plaintiff's Request for Admissions was granted and the admissions were admitted on May 8, 2026. Under these circumstances, the Court concludes that an award of monetary sanctions would be unjust. Accordingly, Plaintiff's request for monetary sanctions is DENIED.

Plaintiff shall submit a revised proposed order consistent with this ruling.

Plaintiff shall give notice.